BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

PETITIONER'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON FIRST CAUSE OF ACTION AND FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

SUPERIOR COURT OF THE STATE OF CALIFORNIA, COUNTY OF ALAMEDA BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity, Respondents. Case No. 26CV191136 -- Hon. Jenna M. Whitman, Dept. 25 Action filed May 29, 2026; Trial: [VERIFY]; Hearing: [VERIFY COURT-ENTERED DATE/TIME/PLACE--Jan. 8, 2027, 9 a.m., Dept.25 was reserved; controlling order and briefing schedule remain to be checked]. Reservation No. 958052306492. Petitioner in propria persona; signature and service contact to be confirmed against current address and caption before use.

TO ALL RESPONDENTS AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on the date, time and place established by the Court, Petitioner will move for judgment on the surviving First Cause of Action for traditional mandate under Code of Civil Procedure sections 1085--1086 and Penal Code section 679.10.

Petitioner requests the following alternative relief, contingent on the Court's actual findings and the operative petition and notice:

(1) Conditional direct certification, only if properly within the operative pleading and notice: If the Court finds the established evidence conclusively proves that Petitioner was a direct victim of qualifying false imprisonment or unlawful criminal restraint, that the statutory helpfulness condition is satisfied, and that no lawful discretion remains to refuse certification, enter judgment and issue a peremptory writ requiring CHP, through an authorized certifying official, to complete, sign, and deliver Form I-918 Supplement B within the time fixed by the Court.

(2) Vacatur and controlled reconsideration if a material decision error is proved: If the Court finds a legally material error or abuse of discretion in the April 20, 2026 denial but does not determine that the sole permissible outcome is certification, vacate that denial and issue a peremptory writ requiring CHP to reconsider the April 9 application under Penal Code section 679.10, including the actual findings and legal conclusions on which the Court sets aside the denial, and to file a verified return.

(3) Narrow factual proceedings if the necessary findings cannot yet be made: If disputed facts essential to either merits disposition remain unresolved, specify and set those issues for appropriate trial/evidentiary determination under Code of Civil Procedure sections 1090--1091 and 1094, without treating mere disagreement as a merits finding.

Grounds: §679.10 expressly lists false imprisonment and unlawful criminal restraint, directs certification when qualifying victimhood and helpfulness are established, and prohibits making prosecution or conviction a prerequisite. The admitted restraint, officers' inability to claim firsthand observed driving, statutory requirements for warrantless misdemeanor DUI arrest under Vehicle Code section 40300.5, recorded chronology, disputed field-test report, and applicant's offered assistance together present concrete issues affecting the legality of Serrato's substantive determination that no qualifying criminal activity occurred. Judge Whitman's August 29, 2026 order overruled the demurrer to Count One on the conditional possibility that proof of false reporting and lack of probable cause could establish abuse; it did not decide those facts.

This motion would be supported, when completed and actually served, by the separate Memorandum, the verified Petition, Judge Whitman's August 29, 2026 order and CHP's October 12, 2026 Answer (court-file documents identified in a separate request for judicial notice under Cal. Rules of Court, rules 3.1113(l) and 3.1306(c)), the concurrently filed Declaration of Brendan Ngehsi Newanforbi with its Exhibits A--I (Appendix of Exhibits, App. 001--082: A, April 20, 2026 denial; B, April 9, 2026 certification submission [working copy pending as-sent verification]; C, CHP production Exhibit 5, AGO 000029--000053; D, CAD incident log, AGO 000022--000024; E, CHP 415 activity records; F, petitioner-prepared April transcript [conditional]; G, Pen. Code § 851.6 detention certificate; H, CHP/POST correspondence; I, beat assignment sheet, AGO 000025), and all admissible evidence properly received at a merits hearing. Petitioner seeks no damages and no revival of dismissed causes.

The separately proposed judgments, writs and alternative trial order are submitted as competing forms of relief, not findings already made. Cal. Rules Ct., rule 3.1113(m). The original native dashcam recording is offered only subject to proper authentication, lodging, playback and admission; a filing receipt for a lodging notice is not itself proof of media admission.

Date: [EXECUTE DATE AFTER NOTICE/HEARING VERIFICATION]

[Signature to be executed in the same legal identity actually appearing on the operative docket]

BRENDAN NGEHSI NEWANFORBI

Petitioner in propria persona

DRAFT CONTROL: this notice has not been filed, served or signed; verify service timing and CMC order before use.